IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.150

C.P.(CAA)/66(AHM)2022
in
C.A.(CAA)/41(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Parksons Packagings Ltd **.....Applicant**

.....Respondent

Order delivered on: 13/06/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Ravi Pahwa, Adv.
For the Income Tax Department	: Ms. Maithili Mehta, Adv.
For the RD	: Ms. Rupa Sutar

ORDER

This is Second motion application filed by the Transferee Company for seeking approval of the scheme of amalgamation under Section 230-232 of the Companies Act. Learned Counsel Mr. Ravi Pahwa appears and submits that the Hon'ble NCLT Mumbai Bench has approved the scheme as regard to the Transferor Company. The matter before this Bench is as regards Transferee Company. When today we took up the matter for hearing and wanted to peruse the relevant financials of the companies involved in the scheme of amalgamation, it is submitted by the Learned Counsel that the financials of only Transferee Company is placed before this Bench, and the financial statement of Transferor Company are not placed before us. This is a scheme of amalgamation. We understand that approval as regards to the individual company will have to be given by the respective Benches, but the scheme as a whole along with the relevant financial statements are required to be placed before each of the concerned Adjudicating Authority. This is not done. Rather it is argued that as per the rules, they are not supposed to file the financial statement of other companies for whom permission has been sought from other Benches. We

heard the Learned Counsel. We are of the view that these are the cases for merger / amalgamation and even if the permission is to be obtained from the respective Jurisdictional Benches, the complete set of scheme of amalgamation (together in the financial statements of all the companies involved in the scheme) is to be placed before each of the jurisdiction Bench. With this view, we direct the petitioner to place before us the complete set of scheme of amalgamation together with the financial statement of the transferor company also.

The matter to appear for further consideration on 20.06.2023.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

SHAMMI KHAN
MEMBER (JUDICIAL)

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